

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

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Crystal Aliaga,

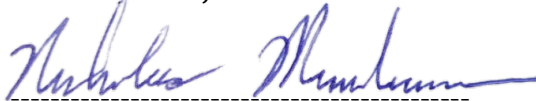
Plaintiff,

Index No.:

- against-

Plaintiff designates
New York County as the
place of trialThe City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-3,
Defendants.The basis of venue is:
The situs of occurrence-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
May 26, 2020The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**

BY: Nicholas Mindicino, ESQ.

*Attorney for Plaintiff*65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765

If you fail to respond, judgment will be entered against you, by default, with interest from Apr 10, 2019.

Defendants:City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007Sergeant Yingyin Yu, Shield No. 00087
New York Police Department - 1st Precinct
16 Ericsson Pl,
New York, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
Crystal Aliaga,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-3,

Defendants.

-----X

Plaintiff, by her attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and the laws of the State of New York for the violation of her right to be Free of Unreasonable Search and Seizure under the United States Constitution.

2. The claim arises from an April 10, 2019 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION AND VENUE

4. Venue is proper in the Supreme Court of the State of New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City

of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, New York County.

PARTIES

5. Plaintiff, Crystal Aliaga (hereinafter “Plaintiff”), is a legal resident of the United States, residing in the State of New York, Queens County.

6. The City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Police Sergeant Yingyin Yu, Shield No. 00087, was, at all times here relevant a police officer of the NYPD, and as such was acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendant Yu was involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of his fellow officers. Defendant Yu is sued in his individual capacity.

8. John Does #1-3 are individuals whose name are currently unknown to plaintiff, are employees of the NYPD, and are sued in their individual capacities. John Does #1-7 were NYPD officers who participated in the search and arrest of plaintiff as described below.

9. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of

New York

FACTUAL ALLEGATIONS

10. At all times here relevant, Plaintiff held a valid ticket seller license issued by the New York City Consumer Affairs Department.

11. Plaintiff worked as ticket seller, in compliance with her valid ticket seller license.

12. On April 10, 2019 Plaintiff was working as a ticket seller for a boat tour operator.

13. Plaintiff was in Battery Park in lower Manhattan, near the intersection of State Street and Pearl Street.

14. At approximately 12:30 PM, Plaintiff was approached by Defendants Yu and John Does #1-3.

15. Defendants placed Plaintiff under arrest.

16. Plaintiff had not committed any crime, nor did defendants have probable cause or reasonable suspicion to believe that any crime had been committed.

17. Defendant Yu would later allege that he had personally observed Plaintiff make fraudulent misrepresentations in the course of her ticket selling work.

18. In fact Plaintiff did not make any misrepresentations, nor was it reasonable for any of the defendants to believe she had done so.

19. Defendant's Yu's claim that he had observed Plaintiff made fraudulent misrepresentations was false.

20. Plaintiff was eventually taken to Central Booking and arraigned on charges of fraudulent accosting. Plaintiff was released on her own recognizance.

21. Plaintiff was required to appear in Criminal Court approximately two more times before the case was ultimately dismissed on July 12, 2019.

22. Defendant Yu was the arresting officer for plaintiff. Upon information and belief, Defendant Yu took plaintiff into physical custody, processed her arrest, prepared arrest paperwork related to her arrest, and coordinated with the District Attorney's office related to the prosecution of Plaintiff.

23. Defendant Yu understood that the arrest paperwork he drafted would be distributed to fellow officers as well as the District Attorney's office, and used to determine what if any charges should be brought against Plaintiff.

24. Defendant Yu personally communicated with a representative of the District Attorney's Office, and presented false evidence to the prosecutor despite knowledge that this information would be used to prosecute Plaintiff.

25. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages.

DAMAGES

26. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of her right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of her rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Loss of Liberty;
- d. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION**(42 U.S.C. § 1983 – as to Individual Defendants)**

27. The above paragraphs are here incorporated by reference.

28. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights under color of law and have conspired to deprive her of such rights and are liable to Plaintiff under 42 USC § 1983.

29. Defendants' conduct deprived Plaintiff of her right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

30. Defendants falsely arrested Plaintiff, maliciously prosecuted Plaintiff, and failed to intervene in each other's obviously illegal actions.

31. Defendants' conduct also deprived Plaintiff of her right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution. Defendants presented false evidence against Plaintiff, thereby denying her right to a fair trial.

32. Plaintiff has been damaged as a result of defendants' wrongful acts

SECOND CAUSE OF ACTION**(42 U.S.C. § 1983 – Municipal And Supervisory Liability - as to Defendant City of New York)**

33. The above paragraphs are here incorporated by reference.

34. The City is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular occurrence of false arrests by its law enforcement officers, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate

indifference caused the violation of plaintiff's constitutional rights in this case.

35. The City has long allowed and encouraged the NYPD to target private boat operators whose interests do not align with the City's. The City has a long-standing licensee agreement with Statue Cruises, allowing that company to be the only boat operator allowed to bring visitors to the Statue of Liberty. The City has derived significant revenue from this agreement, and as a result has significant interest in protecting the business of Statue Cruises from other boat operators. Other operators are only allowed to conduct private tours around, but not directly to the Statue of Liberty. Nevertheless, these other boat operators reduce sales for Statue Cruises, thereby reducing the revenue generated by the City. As a result, the City has enacted policies, whether explicit or implicit, whereby its officers are allowed and encouraged to take actions which discourage and/or punish the lawful sale of tickets by other boat operators in the battery park area. This policy led to the arrest and prosecution of Plaintiff.

36. Moreover, the City's continuing failure to deter law enforcement misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2012, New York City paid out over \$131 million for the fiscal year, compared to 2011, when it paid out more than \$166 million, and 2010, when it paid \$128 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.² More than 40% of those settlements in 2011 stem from excessive force and false arrest.

¹ Mayor Michael Bloomberg's preliminary Management Report for FY 2013, available at http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013_pmmr.pdf, see page 6, last visited on June 25, 2013.

² "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last visited on June 25, 2013.

37. The widely held assumption is that civil rights lawsuits deter law enforcement misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

38. However, the City of New York has isolated law enforcement officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, or its officers. Civil rights lawsuits against law enforcement officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and law enforcement department action against officers. This “total disconnect” between officers’ liability and official discipline, results in a system where the City pays vast sums to settle false arrests, but does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem

of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

39. The City is liable for the damages suffered by plaintiffs in that, after learning of their employees' violation of plaintiffs' constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

40. The aforesaid event underlying plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their law enforcement officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

41. The City has been alerted to the regular use of false arrests by its law enforcement officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

42. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against plaintiff.

43. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated its law department from the discipline of law enforcement officers. Civil rights lawsuits against law enforcement officers have no impact on the officers' careers, regardless of the officers' responsibility lawsuit liability, even after multiple lawsuits. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and law enforcement department action against officers. Nothing has changed since 1999 and the present regarding this "total disconnect" between officers' liability and NYPD discipline, resulting in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests.

44. The Civilian Complaint Review Board ("the CCRB"), a City oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward,

or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

45. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.³ The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provide so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

46. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the oversight agencies.

47. All of the aforementioned has created a climate where officers lie to prosecutors and in

³ The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: “Mission Failure: Civilian Review of Policing in New York City, 1994-2006”, available at: http://www.nyclu.org/files/ccrb_failing_report_090507.pdf, last visited on June 25, 2013.

official paperwork and charging instruments, and testify falsely, with no fear of reprisal. “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

48. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs’ civil rights, without fear of reprisal.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory damages, in the amount not to exceed jurisdictional limits, to the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
May 26, 2020

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
May 26, 2020



NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Crystal Aliaga,

Plaintiff,

- against-

The City Of New York, Sergeant Yingyin Yu,
Shield No. 00087, and John Does #1-3,

Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
May 25, 2020



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
-